

USE OF OTHER THAN FULL AND OPEN COMPETITION SAT

1. Identification of Agency and Contracting Activity

THIS JUSTIFICATION FOR A BRAND NAME SPECIFICATION IS EXECUTED BY THE:

Contracting Activity

Naval Supply Systems Command (NAVSUP), Fleet Logistics Center - San Diego (FLCSD), Contracting Department, Code 200
3985 Cummings Road, BLDG 116, San Diego, CA 92136-4000.

Requiring Agency

Naval Postgraduate School (NPS), Information Technology and Communication Services (ITACS)
1 University Circle, Monterey, CA 93943

2. Nature and/or Description of the Action Being Approved

The Naval Postgraduate School's Dudley Knox Library (DKL) requires highly specialized services to maintain its DSpace-based institutional repository, "Calhoun" (<https://calho>

This repository is a mission-critical system, serving as the centralized archive for NPS's scholarly and institutional records, currently holding over 71,000 items.

The required services, detailed in the Performance Work Statement (PWS), include planning and execution of major platform upgrades, configuration management, security and technical support. Critically, the scope includes the ongoing maintenance, support, and adaptation of a large portfolio of existing, NPS-specific software customizations and is essential to the library's operations.

3. Description of Supplies/Services to Meet the Agency's Needs Including Estimated Value

This document justifies the specification of a brand name source for the procurement of DSpace Institutional Repository support services.

- **Service:** Software upgrades, customizations, maintenance, and technical support for the NPS "Calhoun" DSpace repository.
- **Proposed Vendor:** DSpace
- **Estimated Value:** [REDACTED]
- **Period of Performance:** Base Year (9/15/26 – 9/14/27) plus four (4) one-year option periods.

Is the requested material or service represents the minimum requirements of the Government Estimated Dollar?

Estimated Dollar Value:

FY/Option/Ordering Period	OM&N	OPN	RDT&E
FY2026-2030	[REDACTED]		

4. Statutory Authority Permitting Other Than Full and Open Competition

41 U.S.C. 1903 as implemented by FAR 13.106-1(b)(1)(ii) Brand Name

Additional Information Regarding Statutory Authority if Applicable

This justification is prepared in accordance with Federal Acquisition Regulation (FAR) **13.106-1(b)(1)**, which permits specifying a brand name when that brand name is essential to the Government's requirements, and other companies' similar products or services cannot meet the agency's needs.

Procurement Request/Solicitation/Purchase Order Number: 1301339273

Control Number: 20260003198

I. Background

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).
2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE

Provide a description of the item or service required, to include its intended use, the name of the required source or brand name, the estimated cost/price, and the required date/period of performance

Please reference item 3 above (Description of Supplies/Services to Meet the Agency's Needs Including Estimated Value)

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING:

A. ONLY ONE RESPONSIBLE SOURCE

No

1. Restrictive Rights	No	The source has established proprietary rights, limited rights in data, patent rights, copyright processes in the item or service required.
2. Exclusive Licensing Agreements	No	The item or service is only available from the Original Equipment Manufacturer (OEM), or the authorized distributor or technical representative for the OEM.
3. Other Reasons	No	Provide details on mission impact if requirement is not solicited from only one source

B. BRAND NAME Yes

Item required must be a brand name product, or feature of a product, particular to one manufacturer. Discuss why you are precluding consideration of a product manufactured by another company. Describe how the particular brand name, product, or feature is essential to the Government's requirements and why a "brand name or equal" purchase description cannot be used (see FAR 11.104). Describe how market research indicates other companies' similar products or products lacking the particular feature do not meet, or cannot be modified to meet, the agency's needs.

The services provided by **DSpace** are essential to the Government's requirements for the following reasons:

The NPS Calhoun repository is not a standard, out-of-the-box DSpace installation. It is a complex, mature system that has been significantly modified with custom code specifically for NPS workflows, data models, and security integrations. Only the specified vendor possesses the unique, in-depth knowledge of this custom code required to successfully perform the work without causing unacceptable delays and a substantial duplication of costs.

Key factors making this source unique are:

- **Extensive, Pre-existing Customizations:** The PWS identifies numerous "NPS-specific" features that are not part of the core DSpace software. According to PWS, this includes nineteen (19) distinct "Enhancement Workpackages" such as the "Advanced Replication Task Suite (RTS)," "Internet Archive Synchronization," "Custom Exports," and "PDF Validation Curation Tasks." These components were custom-developed for NPS and require intimate knowledge of their architecture and design to maintain, test, and adapt during major system upgrades.
- **Unacceptable Risk and Cost with Other Sources:** Awarding to any other source would require that vendor to reverse-engineer, learn, and likely re-develop the entire custom code base. This would result in significant duplication of costs for work the Government has already funded. Furthermore, this effort would introduce delays to critical security and platform upgrades (e.g., the upgrade to DSpace 9 LTS), and create a high risk of system failure, data corruption, or extended downtime that would directly disrupt the NPS academic and research mission.
- **Continuity of Operations:** The specified vendor has exclusive familiarity with the custom architecture, integrations with NPS single sign-on (SSO) systems, an understanding of the Calhoun platform. This knowledge is indispensable for executing the required upgrades and maintenance seamlessly, ensuring the continuity of operations and preserving the repository's historical 99.7% uptime.

In summary, only the specified vendor can provide the required services without the Government incurring substantial costs and unacceptable delays that could not be met through competition.

C. UNUSUAL AND COMPELLING URGENCY No

The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine processes would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

Discuss why you are precluding consideration of a product manufactured by another company. Describe how the particular brand name, product, or feature is essential to the Government's requirements and why a "brand name or equal" purchase description cannot be used (see FAR 11.1014). Describe how market research indicates other similar products and products lacking the particular feature do not meet, or cannot be modified to meet, the agency's need.

1. Date on which the requirement was first identified:

2. Required delivery date/period of performance:

09/15/2026 to 09/14/2030

3. Explanation of why delivery/commencement of services by the date mentioned above is required: Explain the impact to the mission if the date above is not met, and the circumstances or conditions that exist which validate the requirement as "urgent," estimated production lead time for the item, etc.

4. If appropriate, include any additional pertinent information:

N/A

CERTIFICATIONS/APPROVALS:

TECHNICAL CERTIFICATION

I certify that the facts and representations under my cognizance which are included in this Exception to Fair Opportunity and its supporting acquisition planning documents noted herein, are complete and accurate to the best of my knowledge and belief.

Technical Cognizance

I certify that the facts and representations under my cognizance which are included in this Exception to Fair Opportunity and its supporting acquisition planning documents noted herein, are complete and accurate to the best of my knowledge and belief.

Requirements Cognizance

CONTRACTING OFFICER CERTIFICATION

I certify that this Exception to Fair Opportunity is accurate and complete to the best of my knowledge and belief. The Contracting Officer's signature below represents approval of this document.

Contracting Officer's Signature

LEVEL ABOVE CERTIFICATION

I certify that this Justification is accurate and complete to the best of my knowledge and belief. The Level Above the Contracting Officer's signature below represents approval of this document.

Level Above the Contracting Officer

LEGAL SUFFICIENCY REVIEW

I have determined this Justification is legally sufficient.

Legal Sufficiency Review

CONTRACTING ACTIVITY COMPETITION ADVOCATE REVIEW

Contracting Activity Approval

HEAD OF CONTRACTING ACTIVITY APPROVAL

Upon the basis of the above justification, I hereby approve, as Head of Contracting Activity, the solicitation of the proposed procurement described herein using other than competition, pursuant to the authority of (Placeholder for US code citation)

HCA Approval